

Court No. - 21

Case :- WRIT - C No. - 11806 of 2022

Petitioner :- Dinesh Kumar Yadav

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Yogendra Singh, Anand Kumar Singh

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

The instant writ petition has been filed praying for quashing of the order dated 10.01.2022 passed by respondent no. 2. By the said order respondent no. 2 has finalized the provisional assessment order passed earlier on 23.11.2021 under the provisions of the Electricity Act, 2003.

The submission of learned counsel for the petitioner is that the provisional assessment dated 23.11.2021 was dispatched on 20.12.2021 and was received by the petitioner on 05.01.2022. He submitted that as per the provisions of Clause 8.1 (b) (iii) of the Electricity Supply Code, 2005, at least fifteen days should have been granted to the petitioner to file his reply to the show cause notice/provisional assessment bill. It is further submitted that a date should also be intimated to the petitioner for personal hearing. However, respondents have not complied with the above two requirements and have proceeded to pass the final assessment order on 10.01.2022.

Learned counsel for respondent Corporation very fairly states that respondent no. 2 be granted liberty to pass a fresh order, having regard to the above statutory provisions.

Accordingly, the impugned order dated 10.01.2022 is quashed leaving it open to respondent no. 2 to pass a fresh order in accordance with law.

The petition stands **allowed** to the extent, as indicated above.

Order Date :- 27.4.2022

VR

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)